REV. KELLY IN LOGAN JAIL

(Continued from Page One)

filled, and Rev. and Mrs. Kelly were brought over from the jail to hear the proceedings. Following is the motion which was filed by the attorneys for the defense:

"Comes now the defendant and shows the court that he is the defendant in this action. That he is now in the custody of the sheriff of Montgomery county, Iowa. The defendant shows the court that he is advised that there has been an order made by this court permitting, authorizing and directing the sheriff of this county to transport this defendant to Des Moines, Iowa, in Polk county of this state, for detention.

"This defendant shows the court that he is now within the fifteenth judicial district of this state, and that when tried he will be tried in the fifteenth judicial district of this state. That he has retained lawyers A. L. Sutton, of Omaha, Neb., and Tinley, Mitchell, Pryor & Ross, of Council Bluffs, Iowa, and Hysham & Billings, of Red Oak, Iowa, to defend him under an indictment charging him with murder of the Joe Moore family and the two Stillinger girls in June, 1912.

"That it is the desire of this defendant to remain in custody of the sheriff of Montgomery county until his trial is had or he has been released according to law, and if not kept in Montgomery county at Red Oak, Iowa, that he be confined in the Pottawattamie jail at Council Bluffs, Iowa, in Council Bluffs, so that he may be accessible to his attorneys and may have communication and consultation with his said attorneys, the said A. L. Sutton being a resident of Omaha, Neb., and quite accessible to Council Bluffs, Iowa.

"That this defendant objects and protests against being removed by any order of this court and without such order to the City of Des Moines to be confined for the reason that said Des Moines of Iowa is not in the fifteenth judicial district of this state. That the defendant if kept there would not be accessible to his attorneys and could not have communication and consultation therewith. And that the defendant is not able to pay the expenses of his attorneys of waiting upon him in the City of Des Moines in Polk county, Iowa.

"And for these reasons this defendant asks that the order be so modified of this court as to his custody pending trial that the defendant may remain in the county jail at Red Oak, Montgomery county, Iowa, or if not there that he be confined by order of this court and committed to the county jail of Pottawattamie county at Council Bluffs, Iowa, in the care of the sheriff of Pottawattamie county until later discharged, or until his trial is had.

"All of which is true as I firmly believe.

"Lyn Geo. J. Kelly."

Judge Sutton presented the matter to the court and argued that to take Kelly away from Red Oak for safe keeping would poison the minds of the public, that the defendant would be branded as a notorious man, a monster "so bold, bad and ferocious that he would eat through the walls," or that the people of the county might break into the jail and lynch him. He cited the fact that Mansfield, a much larger man than Kelly, was kept in the Red Oak jail, and branded as a joke the assertions that a man who voluntarily came 500 miles to give himself up might break out of jail and run away. Judge Sutton declared there was a hidden purpose in wanting to take Kelly to Des Moines, out of the judicial district and the jurisdiction of the court, denying him the constitutional right to confer with counsel at any desired time. So far as danger of lynching was concerned, Judge Sutton said Kelly and his attorneys would assume all responsibility for that. He gave it as his opinion that the attorney general "don't expect to try him for the ax crimes," and added that the defense was afraid to have Kelly taken to Des Moines because they understood the tactics which had previously been used in this case. He spoke of the horrors of the "sweat box" and pictured Kelly in Des Moines in the "absence of counsel in a lonely chamber in the middle of the night to drive the reason from his brain." Judge Sutton concluded by saying that taking Kelly to Des Moines "smacks too much of Russia before the revolt," and added that "the Kaiser himself never had such power."

Rebuked by the Court

When Judge Sutton had finished there was applause on the part of the spectators, and Judge Woodruff took occasion to rebuke the audience. He declared that the court was not a circus and there was no jury to influence, and threatened to clear the court room in case the demonstration was repeated. There was no further disturbance.

Havner's Argument

In stating his grounds of resistance of the motion to modify the order, Attorney General Havner cited the fact that a number of prisoners had broken out of the Red Oak jail. He named the murderer Clark, and George Baker as among those who had accomplished an escape, and said that the condition of the walls was such that escape was easy. He said that he had the affidavit of a man who had repaired bars of the jail 12 separate times. Then he told that Polk county jail was the best constructed, best ventilated and most sanitary jail in Iowa, but said that if the court believed taking Kelly to Des Moines would give the state an unfair advantage he had no desire to insist on Des Moines as the place for keeping Kelly. He did object, however, to leaving Kelly in the Red Oak jail or taking him to Council Bluffs, the home town of one of Kelly's attorneys. He referred to the fact that attorneys for the defendant were members of three of the most prominent firms in the two states, Iowa and Nebraska. He mentioned the fact in answer to the argument of the defense that Kelly had no money to pay expenses of his attorneys going a long distance to see him. The attorney general repeated that he would object to Council Bluffs as the place of keeping Kelly, and said the evidence would warrant the court in believing that Kelly was a dangerous man to society and should be kept in a safe place while awaiting trial. He spoke of taking Kelly to a place where the state's attorneys could see him, and Judge Sutton interrupted him long enough to remark that Havner did not represent Kelly and did not have to see him. Havner contended that the court could send Kelly outside the district and bring him back whenever he was wanted for trial, and declared that the state did not desire any unfair advantage, nor wish the defense to have such an advantage. In regard to creating public sentiment by moving Kelly from the jail here, for fear of lynching, Havner said that this was often done and added that the "demonstration of the audience in the court room is pretty good evidence that such sentiment does not prevail with the audience assembled." County Attorney Wenstrand was present while the arguments were being offered, but he took no part.

Broke His Own Law

T. J. Hysham, for the defense, followed Attorney General Havner in the argument, and in the course of his address charged Havner with having been the first to break the law which he (Havner) got through the last legislature to prevent private detectives from influencing public opinion in crminal matters by means of public speeches. Mr. Hysham declared that Havner's statement to daily papers, and his attempt to have Kelly taken to Des Moines were for the purpose of creating sentiment against Kelly. Mr. Hysham's argument opened with a description of Kelly, a recital of the fact that he was indicted April 30, and that no apparent attempt had been made to arrest him. He recited how Kelly had traveled here to give himself up to answer the charge in spite of the attorney general's office—in defiance of the attorney general's office—and demanded that he be arrested, and given a chance to answer. He said that Kelly was not arrested until after the county attorney had telephoned the attorney general, and that in order to have a chance to prove his innocence Kelly "almost had to be his own prosecutor." He suggested that if there was danger of a man getting away from jail after doing what Kelly has done to give himself up, the attorney general should ask the governor to call out the militia to guard the jail. Then he asked when the Polk county jail became so wonderfully strong, and stated that prisoners had escaped from it. He said that the inner cage in the Red Oak jail was as good as any in Polk county, or Iowa. He disputed the contention that the state's attorneys had any right to see Kelly, and objected to having Kelly taken where he would be subjected to unwelcome visits from the attorney general and his "private detectives big enough to eat Kelly up." "What chance would Kelly have," Mr. Hysham said, "if they tried to break down his mind, put him in an asylum so they can say 'Here is your man, without giving him a trial.'" Mr. Hysham referred to the affidavit of witnesses who were "grilled" before testifying before the grand jury, and of the fact that an Italian murderer was sent here last summer by Judge Arthur for safe keeping. He said the attorneys should "come into this case with clean hands, and the attorney general's office is not doing it." In conclusion Mr. Hysham said he had considered the claims of the explorer, Dr. Cook, the greatest hoax of the times, but that it was equalled by the declaration that Kelly could be guilty of the Villisca murder, and that he should be removed to Des Moines for safe keeping.

The Court's Decision

Judge Woodruff did not spend much time in announcing that he would modify the order to send Kelly to Des Moines, but added that he would not rule in accordance with the motion of the defense entirely. He spoke of the criticism of the Red Oak jail, of the escape of prisoners, of the Council Bluffs jail being not large and usually crowded, and the necessity for Kelly to be in a place where counsel was available. He took no stock in the argument that the prisoner might be mistreated even if sent to Des Moines, but believed he should be kept within the judicial district. Then he named Logan as the place of imprisonment, because the jail was safe, a district judge easily obtainable, eand only a short distance away from the attorneys for the defense. A motion by Judge Sutton that the trial be set for some date not later than May 28 was promptly overruled, and the court could give no idea when the case could be tried.

Trial Probably in Red Oak

Many people have obtained the impression that the Kelly trial would take place in Logan, because he is imprisoned there. This is not the case, and unless the defendant takes a change of venue, which is unlikely, the trial will be held in Red Oak.

Kelly Was Broke

When Rev. and Mrs. Kelly went to jail Monday they had only 30 cents in their possession, and that was in Mrs. Kelly's purse. On Tuesday a number of men in the audience at the court house made up a purse of $15.35 and gave it to Mrs. Kelly to pay her expenses of the trip to Logan and to apply on her board while she remains with her husband.

To Be Lawyer in Red Oak

Des Moines, Iowa, May 17.—Detective J. N. Wilkerson of the Burns force who has been attempting to solve the Villisca ax murder mystery for the past three years, has quit the "sleuthing business" and will hang out a lawyer's shingle at Red Oak.

He made this announcement in Des Moines today. Mr. Wilkerson and his wife arrived here Wednesday night from Chicago, and left for Red Oak at 10 a. m. today.

Wilkerson declares he takes no stock in the charges against Rev. Lyn George J. Kelly, who has been indicted by the Montgomery county grand jury as the Villisca ax man and is now confined in the Logan, Iowa, jail.

Havner Not Worried

Atlantic, Iowa, May 17.—Attorney General H. M. Havner who was here today declared there is nothing to the threats of the attorneys defending Rev. L. G. J. Kelly to cite the counsel for the prosecution for contempt of court because of the publication yesterday of what they termed "grand jury evidence."

"There has been no violation of any man's trust of office in any manner, shape or form," Mr. Havner said. "Further than that we have nothing to say."

Mr. and Mrs. Hollis Durland of Macedonia, Iowa, returned to their home Thursday after a visit in Villisca with relatives and friends.

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Every woman should be careful that the liver is active and the poisons are not allowed to clog the system—get rid of these poisons by taking a vegetable laxative occasionally—such as Dr. Pierce's Pleasant Pellets. They do not gripe and will not harm the most delicate system.

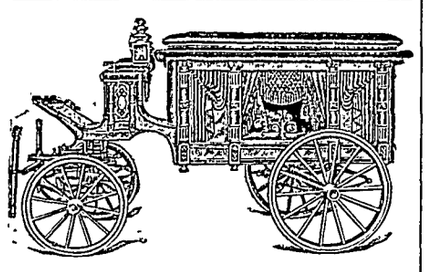
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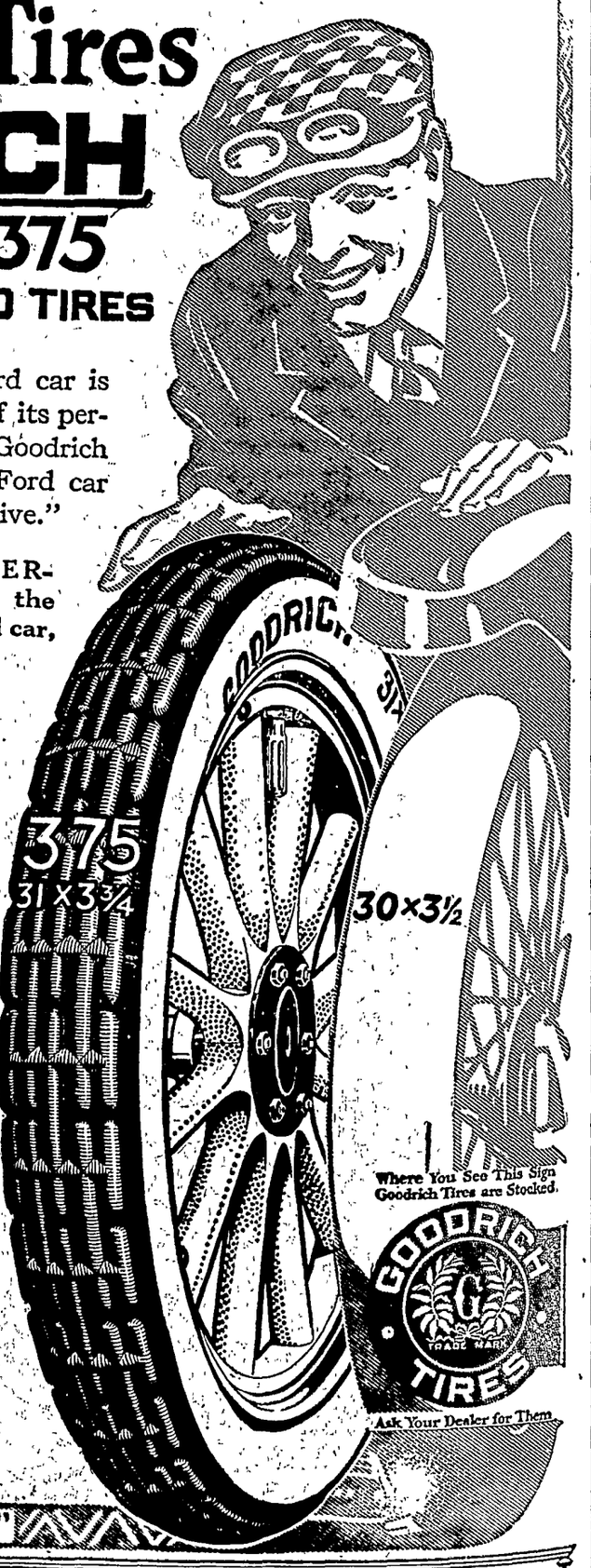
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